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Case Number: 24NNCV02967 Hearing Date: September 24, 2026 Dept: T

Rachel Wolf vs. Carmi V. Gallo

Motion to Compel Defendant's Responses to Request for Production of Documents, Set Eight

Moving Party: Plaintiff Rachel Wolf

Responding Party: None

Tentative Ruling: Grant

RULING

As the Court finds that Plaintiff Rachel Wolf ("Plaintiff") properly served Defendant Carmi V. Gallo ("Defendant") with an eighth set of requests for production of documents on June 12, 2026, via mail. As a result, Defendant's deadline to respond to these requests was July 17, 2026. However, Defendant failed to timely respond by this date and thereby waived all objections. (Code Civ. Proc. § 2031.300, subd. (a).) Furthermore, when directed to a production request, Code of Civil Procedure "[s]ection 2031.250 requires that a response be verified unless it contains only objections." (Pollock v. Superior Court (2023) 93 Cal.App.5th 1348, 1352.) Although Defendant belatedly served her response to these requests on July 23, 2026, the accompanying verification failed to include a statement confirming that it was made "under penalty of perjury" by Defendant. (Code Civ. Proc. § 2015.5.) Nor was the verification substantially in the form required by Section 2015.5. "A fatally defective verification 'is treated as a failure to verify.' [Citation.]" (Krueger v. Superior Court (1979) 89 Cal.App.3d 934, 939.) Accordingly, as the facially defective verification is treated as a failure to verify, the Court finds that Defendant's failure to properly verify her July 23, 2026, responses rendered them ineffective, as "[u]nsworn responses are tantamount to no responses at all." (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.) Therefore, the motion to compel verified responses, without objections, to these production requests is granted. (Code Civ. Proc. § 2031.300, subd. (b).)

Plaintiff Rachel Wolf's Motion to Compel Defendant's Responses to Requests for Production, Set Eight, is GRANTED. Defendant Carmi V. Gallo's verified responses, without objections, are due within 20 days of this order.